

Smt. Barkha Gupta vs Rahul Gupta on 16 March, 2018

THE HIGH COURT OF MADHYA PRADESH

FA-600-2018

(SMT. BARKHA GUPTA Vs RAHUL GUPTA)

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Gwalior, Dated : 16-03-2018

Shri R.B. Tripathi, Advocate for the appellant.

Let record of the Family Court be requisitioned.

The appellant wife assails the decree of divorce passed in favour of respondent husband.

sh Learned counsel for the appellant prays for stay of the impugned e order vide I.A.No. 1408/18 which is infructuous in view of the ad statutory bar contained in Section 15 of Hindu Marriage Act which Pr debars the respondent/husband to marry again if the appeal by wife is filed within period of limitation.

a hy In view of the said appeal having been preferred by the wife within the period of limitation prescribed for the same, I.A. No. ad 1408/18 stands dismissed as infructuous as the mandate u/S. 15 of M Hindu Marriage Act comes into play restraining the husband from re- marrying.

of Let notice be issued on admission as well as I.A. No. 1410/18 to rt the respondent within seven working days.

ou List thereafter.

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(S. A. DHARMADHIK)

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